

November 20, 2015

Wetlands Division
DEP – Northeast Regional Office
205B Lowell Street
Wilmington, MA 01887

Re: Appeal of ANRAD (DEP File #338-0594)
42 Mill Street, Westwood, MA

Dear DEP:

On behalf of Anthony Delapa of Delapa Properties, we hereby appeal the above referenced Abbreviated Notice of Resource Area Delineation (ANRAD) issued on November 9, 2015 by the Westwood Conservation Commission (WCC).

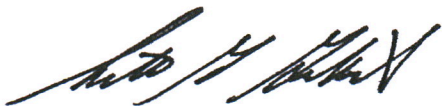
Description: The site is well described in the 11/10/14 ANRAD as submitted to the DEP and WCC. BVW is well defined on-site and the presumptively perennial stream has been demonstrated to be intermittent by Goddard Consulting, LLC. The Conservation Commission Agent refused to conduct a site review of wetland delineation leading to unreasonable delays. Furthermore, after the Conservation Commission eventually requested a peer review, they asked for a check for \$3880 for Goldsmith Environmental to conduct a review of a mere 91 wetland flags. A check was issued – and a refund of any balance has yet to be issued after multiple requests. The peer review took many months to visit the site, and then simply rejected the delineation without any supporting evidence. The ONE YEAR LONG process was an outrageous offense to the public process of an ANRAD review. After exorbitant fees were charged and little work done to justify the high invoice, no reasonable outcome could be had. It was simply and arbitrarily concluded by the reviewer that the wetland line was incorrect and the stream was perennial. No evidence supporting these claims was submitted by the per reviewer or the WCC. Furthermore, a request was made at the last public hearing to withdraw the ANRAD under the Westwood Wetlands Bylaw to withdraw the application as it pertains only to the local Bylaw. They illegally denied the request to withdraw and will now force and unnecessary lawsuit to Superior Court for improperly conducting a public hearing an improperly administering open meeting laws.

Timeliness: The ORAD was issued on November 9, 2015. It was postmarked on November 10, 2015. Ten business days (excluding Veteran's Day on November 11) makes the appeal deadline as November 24, 2015. This appeal is being filed on November 20, 2015 by post marking to DEP, thus it is timely.

Basis: We appeal and object to the inaccurate findings of the ORAD. Our appeal is directed to all items identified in the ANRAD. Without any evidence, whatsoever, presented by WCC, its staff, or peer review consultant, the WCC simply issued an ORAD on this parcel finding resources to be inaccurate. No explanation was given as to their logic. We believe we were not given a fair hearing of the facts and were subject to unreasonable delays.

In summary, we request the Department to issue a Superseding Order of Resource Area Delineation (SORAD) finding that BVW is accurately delineated and the no perennial stream is found on site.

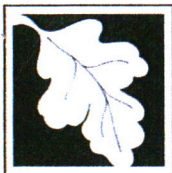
Very truly yours,
GODDARD CONSULTING, LLC

A handwritten signature in black ink, appearing to read 'Scott Goddard', written over a horizontal line.

Scott Goddard, Manager & PWS

Very truly yours,
GODDARD CONSULTING, LLC

cc: Westwood Conservation Commission, 50 Carby Street, Westwood, MA 02090
Anthony Delapa, Delapa Properties, 511 Washington Street, Norwood, MA 02062 (*applicant*)
Salvatore Vinci, 67 Hazelwood Drive, Norwood, MA 02062 (*owner*)
Westwood Board of Selectman, 580 High Street, Westwood, MA 02090
Michael Jaillet, Town Administrator, 580 High Street, Westwood, MA 02090



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands
**Request for Departmental Action Fee
Transmittal Form**

DEP File Number:

338-0594

Provided by DEP

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

A. Request Information

1. Location of Project

42 Mill Street

a. Street Address

1274

c. Check number

Westwood

b. City/Town, Zip

\$120

d. Fee amount

2. Person or party making request (if appropriate, name the citizen group's representative):

Anthony Delapa

Name

Delapa Properties, 511 Washington Street

Mailing Address

Norwood

City/Town

781-769-3429

Phone Number

MA

State

02062

Zip Code

Fax Number (if applicable)

3. Applicant (as shown on Determination of Applicability (Form 2), Order of Resource Area Delineation (Form 4B), Order of Conditions (Form 5), Restoration Order of Conditions (Form 5A), or Notice of Non-Significance (Form 6)):

Anthony Delapa

Name

Delapa Properties, 511 Washington Street

Mailing Address

Norwood

City/Town

781-769-3429

Phone Number

MA

State

02062

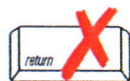
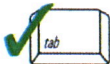
Zip Code

Fax Number (if applicable)

4. DEP File Number:

338-0594

Important:
When filling out forms on the computer, use only the tab key to move your cursor - do not use the return key.



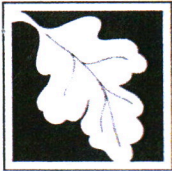
B. Instructions

1. When the Departmental action request is for (check one):

- ☐ Superseding Order of Conditions – Fee: \$120.00 (single family house projects) or \$245 (all other projects)
- ☐ Superseding Determination of Applicability – Fee: \$120
- ☒ Superseding Order of Resource Area Delineation – Fee: \$120

Send this form and check or money order, payable to the *Commonwealth of Massachusetts*, to:

Department of Environmental Protection
Box 4062
Boston, MA 02211



Massachusetts Department of Environmental Protection

Bureau of Resource Protection - Wetlands

**Request for Departmental Action Fee
Transmittal Form**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

DEP File Number:

338-0594

Provided by DEP

B. Instructions (cont.)

2. On a separate sheet attached to this form, state clearly and concisely the objections to the Determination or Order which is being appealed. To the extent that the Determination or Order is based on a municipal bylaw, and not on the Massachusetts Wetlands Protection Act or regulations, the Department has no appellate jurisdiction.
3. Send a **copy** of this form and a **copy** of the check or money order with the Request for a Superseding Determination or Order by certified mail or hand delivery to the appropriate DEP Regional Office (see <http://www.mass.gov/eea/agencies/massdep/about/contacts/>).
4. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.

Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

DEP File Number:

WPA Form 4B – Order of Resource Area Delineation

338-0594

Provided by DEP

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

AND Westwood Wetland Protection Bylaw, Article 18

A. General Information

Important:

When filling out forms on the computer, use only the tab key to move your cursor - do not use the return key.

From:

Westwood Conservation Commission
Conservation Commission

This Issuance is for (check one):

- ☒ Order of Resource Area Delineation
- ☐ Amended Order of Resource Area Delineation

To: Applicant:

Anthony Delapa/Delapa Properties
Name
511 Washington Street
Mailing Address
Norwood MA 02062
City/Town State Zip Code

Property Owner (if different from applicant):

Salvatore Vinci
Name
67 Hazelwood Drive
Mailing Address
Norwood MA 02062
City/Town State Zip Code

1. Project Location:

42 Mill Street
Street Address
28
Assessors Map/Plat Number

Westwood
City/Town
013
Parcel /Lot Number

2. Title and Date (or Revised Date if applicable) of Final Plans and Other Documents:

<u>WETLAND DELINEATION PLAN 42 MILL STREET WESTWOOD</u>	<u>10/27/14</u>
<u>MASSACHUSETTS</u>	Date
<u> </u>	Date
<u> </u>	Date

3. Dates:

<u>11/10/14</u>	<u>10/28/15</u>	<u>11/9/15</u>
Date Notice of Intent Filed	Date Public Hearing Closed	Date of Issuance

WPA Form 4B – Order of Resource Area Delineation

338-0594

Provided by DEP

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

B. Order of Delineation

The Conservation Commission has determined the following (check whichever is applicable):

- ☐ **Accurate:** The boundaries described on the referenced plan(s) above and in the Abbreviated Notice of Resource Area Delineation are accurately drawn for the following resource area(s):

☐ Bordering Vegetated Wetlands

☐ Other Resource Area(s), specifically:

- ☐ **Modified:** The boundaries described on the plan(s) referenced above, as modified by the Conservation Commission from the plans contained in the Abbreviated Notice of Resource Area Delineation, are accurately drawn from the following resource area(s):

☐ Bordering Vegetated Wetlands

☐ Other Resource Area(s), specifically:

- ☒ **Inaccurate:** The boundaries described on the referenced plan(s) and in the Abbreviated Notice of Resource Area Delineation were found to be inaccurate and cannot be confirmed for the following resource area(s):

☒ Bordering Vegetated Wetlands

☒ Other Resource Area(s), specifically:

Perennial Stream and potential Vernal Pool

The boundaries were determined to be inaccurate because:

inaccuate delineation and incorrect stream determination

**WPA Form 4B – Order of Resource Area
Delineation**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

C. Findings

This Order of Resource Area Delineation determines that the boundaries of those resource areas noted above, have been delineated and approved by the Commission and are binding as to all decisions rendered pursuant to the Massachusetts Wetlands Protection Act (M.G.L. c. 131, § 40) and its regulations (310 CMR 10.00). This Order does not, however, determine the boundaries of any resource area or Buffer Zone to any resource area not specifically noted above, regardless of whether such boundaries are contained on the plans attached to this Order or to the Abbreviated Notice of Resource Area Delineation.

This Order must be signed by a majority of the Conservation Commission. The Order must be sent by certified mail (return receipt requested) or hand delivered to the applicant. A copy also must be mailed or hand delivered at the same time to the appropriate DEP Regional Office (see <http://www.mass.gov/eea/agencies/massdep/about/contacts/find-the-massdep-regional-office-for-your-city-or-town.html>).

D. Appeals

The applicant, the owner, any person aggrieved by this Order, any owner of land abutting the land subject to this Order, or any ten residents of the city or town in which such land is located, are hereby notified of their right to request the appropriate DEP Regional Office to issue a Superseding Order of Resource Area Delineation. When requested to issue a Superseding Order of Resource Area Delineation, the Department's review is limited to the objections to the resource area delineation(s) stated in the appeal request. The request must be made by certified mail or hand delivery to the Department, with the appropriate filing fee and a completed Request for Departmental Action Fee Transmittal Form, as provided in 310 CMR 10.03(7) within ten business days from the date of issuance of this Order. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.

Any appellants seeking to appeal the Department's Superseding Order of Resource Area Delineation will be required to demonstrate prior participation in the review of this project. Previous participation in the permit proceeding means the submission of written information to the Conservation Commission prior to the close of the public hearing, requesting a Superseding Order or Determination, or providing written information to the Department prior to issuance of a Superseding Order or Determination.

The request shall state clearly and concisely the objections to the Order which is being appealed and how the Order does not contribute to the protection of the interests identified in the Massachusetts Wetlands Protection Act, (M.G.L. c. 131, § 40) and is inconsistent with the wetlands regulations (310 CMR 10.00). To the extent that the Order is based on a municipal bylaw or ordinance, and not on the Massachusetts Wetlands Protection Act or regulations, the Department of Environmental Protection has no appellate jurisdiction.



Town of Westwood
Conservation Commission
50 Carby Street
Westwood MA 02090

BROCKTON MA 023

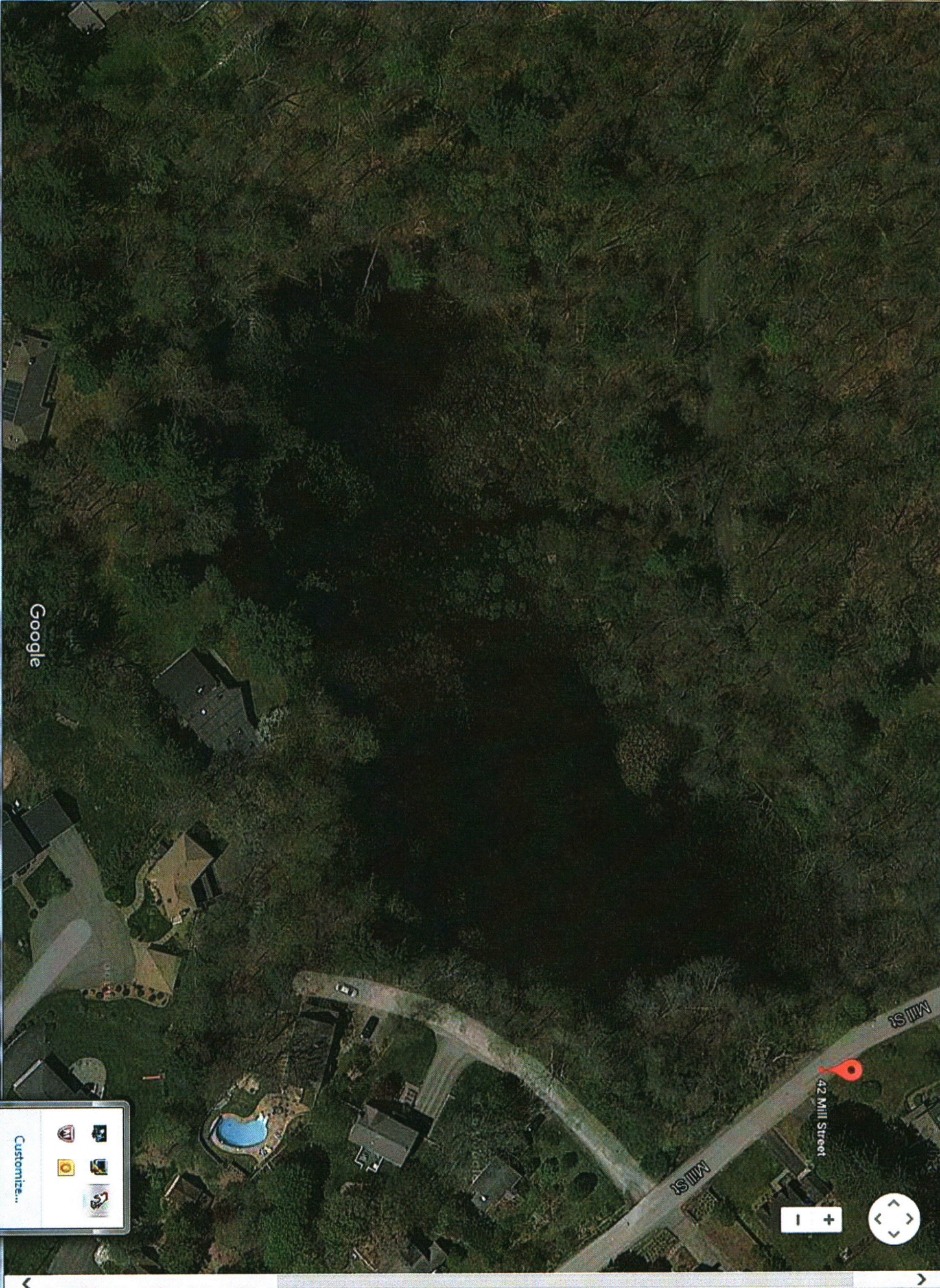
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Goddard Consulting
291 Main Street, Suite 8
Northborough, MA 01532

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